

Court No. - 4

Case :- WRIT - C No. - 5070 of 2020

Petitioner :- Iqbal Alias Akbal

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Ravindra Prakash Srivastava

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Bala Krishna Narayana,J.

Hon'ble Shamim Ahmed,J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad learned counsel for the Electricity Department and perused the record.

This writ petition has been filed, inter alia, for the following reliefs :-

"(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate dated 5.1.2020 issued by respondent no. 3 against the petitioner to the tune of Rs.3,86,656/- + others (Annexure-5 to the writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus directing the respondent no. 4 to consider and decide the representation of the petitioner dated 26.4.2019 within stipulated period.

(iii) Issue any other writ, order or direction in suitable nature which this Hon'ble Court may deem fit and proper under the circumstances of the case.

(iv) Award the cost of the writ petition to the petitioner."

The petitioner is raising a dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt

of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days or till the matter is decided by the authority concerned, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery certificate dated 5.1.2020.

It is made clear that in case the petitioner does not approaches the authority concerned within the stipulated period, as indicated herein above, the benefit given to the petitioner under this order shall cease to operate.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 13.2.2020

Ishan